

**FORM 70 DD**

FILE NO. \_\_\_\_\_

*(General heading)*

*Court Seal*

**NOTICE TO RESPONDENT**

TO THE RESPONDENT

A LEGAL PROCEEDING HAS BEEN COMMENCED by the applicant. The claim made by the applicant in *(jurisdiction)* is attached.

THIS APPLICATION will come on for hearing before the Supreme Court on a date and at a place to be fixed by the Registrar.

IF YOU WISH TO OPPOSE THIS APPLICATION, to receive notice of any step in the application or to be served with any document in the application, you or a lawyer acting for you must forthwith prepare a notice of appearance in Form 38A and a designation of address for service (Form 16A.1) prescribed by the Rules of Civil Procedure, serve it on the applicant's lawyer or, where the applicant does not have a lawyer, serve it on the applicant, and file it, with proof of service, in this court office, and you or your lawyer must appear at the hearing.

IF YOU WISH TO PRESENT AFFIDAVIT OR OTHER DOCUMENTARY EVIDENCE TO THE COURT OR TO EXAMINE OR CROSS-EXAMINE WITNESS ON THE APPLICATION, you or your lawyer must, in addition to serving your notice of appearance, serve a copy of the evidence on the applicant's lawyer or, where the applicant does not have a lawyer, serve it on the applicant at least three clear days before the hearing, and file it with proof of service in the court office where the application is to be heard, at least three clear days before the hearing date.

IF YOU FAIL TO APPEAR AT THE HEARING, JUDGMENT MAY BE GIVEN IN YOUR ABSENCE AND WITHOUT FURTHER NOTICE TO YOU.

Date: \_\_\_\_\_

Issued by: \_\_\_\_\_  
Address of court office

TO: *(Name, address, telephone number and email address of Respondent)*